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County: los-angeles

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

29, 2026

CASE NUMBER

26SMCV02802

MOTIONS

(1)

Preliminary Injunction

(2)

Demurrer

MOVING PARTY

Defendant

Shelby Ring

OPPOSING PARTY

Plaintiff

Sean Akhavi

MOTIONS

This case arises from a dispute between a prospective purchaser of real property owned by an entity and listed by one of its members, who is also a realtor.

On May 20, 2026, Plaintiff Sean Akhavi ("Plaintiff") filed suit against Defendants Triplicity Properties, LLC ("Triplicity") and Shelby Ring ("Ring") (together, "Defendants") alleging five causes of action for (1) breach of contract; (2) intentional misrepresentation; (3) concealment; (4) intentional interference with contractual relations; and (5) intentional interference with prospective economic relations.[1]

Ring now moves for injunctive relief as follows:

(1)

Extending Triplicity Properties, LLC's time to respond to the Complaint for a reasonable period

(2)

Directing that no default be entered against Triplicity during that period or if the clerk has entered the default, vacating it forthwith without requiring a separate motion

(3)

Preserving Triplicity's ability to assert all available defenses pending judicial determination of the authority of the majority managers to waive or abandon those defenses

(4)

Granting such further relief as the Court deems just and proper to preserve the Company's rights while the internal governance dispute is resolved.

The grounds for the motion for injunctive relief are that two of Triplicity's three managers have elected not to defend Triplicity against Plaintiff's causes of action and have not retained counsel to assert defenses thereto.

Ring also demurs to the Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action and uncertainty, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively.

Plaintiff opposes both motion and Ring replies.

ANALYSIS

I.

PRELIMINARY INJUNCTION

Pursuant to Code of Civil Procedure section 527, subdivision (a), "[a] preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." (Code Civ. Proc., § 527, subd. (a).) "The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial." (Grothe v. Cortlandt Corp. (1992) 11 Cal.App.4th 1313, 1316.)

The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.) Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See, e.g., ReadyLink Healthcare v. Cotton (2005) 126 Cal.App.4th 1006, 1016; Ancora-Citronelle Corp. v. Green (1974) 41 Cal.App.3d 146, 150.)

The trial court considers two factors in determining whether to issue a preliminary injunction: (1) the likelihood the plaintiff will prevail on the merits of its case at trial, and (2) the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the court grants a preliminary injunction. (Code Civ. Proc., § 526, subd. (a); Husain v. McDonald's Corp. (2012) 205 Cal.App.4th 860, 866-867 (hereafter Husain).) The balancing of harm between the parties "involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status

quo.” (Husain, *supra*, 205 Cal.App.4th at p. 867.)

“The decision to grant a preliminary injunction rests in the sound discretion of the trial court . . . before the trial court can exercise its discretion the applicant must make a prima facie showing of entitlement to injunctive relief. The applicant must demonstrate a real threat of immediate and irreparable injury.” (Triple A Machine Shop, Inc. v. State of Cal. (1989) 213 Cal.App.3d 131, 138.) “[A]n injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff,” and the party seeking injunctive relief bears the burden to prove its absence. (Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist. (1992) 8 Cal.App.4th 1554, 1564-1565.)

As a threshold matter, it is unclear how Ring, in her individual capacity, has standing to seek injunctive relief on behalf of Triplicity, the entity.

Standing requires an injury, or “an invasion of a legally protected interest.” (Great Lakes Construction, Inc. v. Burman (2010) 186 Cal.App.4th 1347, 1356.) The movant must establish a personal stake in the motion sufficient to satisfy the standing requirements of Article III of the United States Constitution. (*Id.* at p. 1357.)

Here, all the relief Ring seeks applies to Triplicity, not Ring in her individual capacity. Specifically, Ring seeks to (1) extend Triplicity’s time to respond to the Complaint; (2) vacate default entered against Triplicity (since default has already been entered); and (3) preserve Triplicity’s defenses.

Ring argues that as a 40% member and one of Triplicity’s three managers, her rights will be impaired if Triplicity’s defenses are surrendered. But Ring’s own declaration establishes that actions taken on behalf of the company require either unanimous approval or majority approval, whereas here, two of the three members, representing 60% of the company’s interests, have refused to defend this lawsuit. (Ring Decl. ¶¶ 3-4, 9.)

Further, Plaintiff argues that the relief Ring seeks is not to

maintain the status quo, but rather to unwind acts that have already occurred. Specifically, Ring seeks to vacate a default that has already been entered, then to extend the time within which Triplicity may respond to the Complaint, and preserve Triplicity's defenses in the meantime.

As Plaintiff contends, the instant motion is effectively a motion to vacate/set aside entry of default, disguised as a motion for preliminary injunction. The Court agrees.

Ring has not demonstrated she has standing in her individual capacity to move to set aside the entry of Triplicity's default. Notably, an entity, like Triplicity, "unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) Here, as Ring has conceded, a majority of Triplicity's members have refused to retain counsel in this matter. (Ring Decl. ¶¶ 9, 17.)

Further, Code of Civil Procedure section 473, subdivision (b) requires that the application for relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]" (Emphasis added.) Here, Ring has not included a copy of Triplicity's proposed responsive pleading, because she cannot represent Triplicity's interests in this litigation on her own.

Therefore, Ring's motion for preliminary injunction is denied for lack of standing and because it seeks not to preserve the status quo, but to unwind actions that have already been taken.

II. DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but

disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (290 Division (EAT), LLC v.

City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 ["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint "with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, "[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.
MEET AND
CONFER

Code
of Civil Procedure section 430.41, subdivision (a) requires that "Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer."

The statute further requires
"As part of the meet and confer process, the demurring party shall identify all

of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1) [emphasis added].) “The party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency.” (Ibid.)

“The parties shall meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41, subd. (a)(2).) “The demurring party shall file and serve with the demurrer a declaration stating either” the means by which the parties met and conferred, or that the party who filed the pleading subject to demurrer failed to respond to the meet and confer request. (Id., subd. (a)(3).)

Here, Ring declares as follows:

12. I

called Mr. Hagemann on June 21, 2026, but he did not answer. Mr. Hagemann wrote me a follow up email telling me to give him my basis for seeking to dismiss the lawsuit in writing. So that evening, on June 21, 2026, I sent him a descriptive email outlining the specific causes of action subject to demurrer. I addressed each cause of action substantively. Mr. Hagemann declined to address any of the questions I raised and threatened to seek sanctions for asserting my rights. A copy of our email exchange is attached here at Exh. 2. We could not come to a resolution.

(Ring Decl. ¶ 12.)

The email correspondence attached as Exhibit 2 is between Ring personally (not through counsel) and Plaintiff’s counsel.

Plaintiff’s counsel points out in response that Ring’s correspondence is devoid of any supporting legal authority, and Ring appears to challenge the first cause of action, which is alleged against Triplicity only.

Thus,

Plaintiff argues in opposition that this is insufficient to satisfy Ring’s good faith meet and confer obligations. The Court

agrees.

CONCLUSION AND ORDER

Therefore, the Court denies Ring's motion for a preliminary injunction on the grounds that it is effectively a motion to vacate entry of default against Triplicity, which Ring lacks standing to assert and because Ring failed to attach a copy of Triplicity's proposed responsive pleading, as required under Code of Civil Procedure section 473, subdivision (b).

Further, finding Ring did not adequately meet and confer prior to bringing the instant demurrer, the Court continues the hearing on the demurrer to August 31, 2026 at 8:30 A.M. in Department 207 to allow the parties an opportunity to meet and confer in good faith as required and, if possible, to narrow the scope of the issues brought to the Court to decide. Thereafter, counsel for Ring and Plaintiff shall file and serve declarations establishing compliance with the meet and confer requirement under Code of Civil Procedure section 430.41 on or before August 24, 2026.

Ring shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 29, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

[1] On July 9, 2026, the Court entered default against Triplicity.